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Case Number: NAIH-6737-1/2024.
Subject: Decision establishing a violation

(NAIH-2900/2023.)

(NAIH-636/2022.)

(NAIH-9230/2021.)

****DECISION****

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) has made the following decisions regarding the request submitted by [...] (hereinafter: Applicant) to the Authority on December 30, 2021, concerning the sending of letters related to [...] by [...] (hereinafter: Respondent) to the Applicant and the failure to respond to the data protection complaint, as well as the general data processing practices of the Respondent regarding letters to be sent to the data subjects:

1. The Authority finds that the Respondent has violated
 - Article 5(1)(a) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, as it relates to the Applicant and other data subjects;
 - Articles 13(1)-(2) of the General Data Protection Regulation concerning the Applicant and other data subjects.
2. The Authority prohibits the Respondent from processing the names and email addresses of the Applicant and other data subjects based on Article 6(1)(b) of the General Data Protection Regulation in connection with the information regarding [...].
3. The Authority instructs the Respondent to base its data processing related to [...] on an appropriate legal basis (for example, the consent of the data subjects), to provide adequate information to the data subjects regarding this data processing, and not to use the personal data of those data subjects who do not give their consent for this purpose.
4. The Authority rejects the remaining part of the Applicant's request.
5. Due to the violations established in the application procedure, the Authority imposes a data protection fine of
5,000,000 HUF (five million Hungarian Forints)
on the Respondent.

* * *

The Respondent must provide written proof to the Authority of the measures prescribed in points 2 and 3 within 30 days from the receipt of this decision, along with supporting evidence.

The data protection fine must be paid within 30 days from the receipt of this decision to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000). When transferring the amount, reference must be made to NAIH- /2024. FINE number.

If the Respondent fails to fulfill the obligation to pay the fine by the deadline, it must pay a late fee to the above account number. The amount of the late fee is the statutory interest, which corresponds to

the central bank base rate valid on the first day of the calendar half-year affected by the delay.

In case of non-compliance with the obligations set out in points 2 and 3, as well as non-payment of the data protection fine and the late fee, the Authority orders the enforcement of the decision.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by submitting a lawsuit addressed to the Metropolitan Court within 30 days from the notification. The lawsuit must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the lawsuit. For those not fully exempt from personal fees, the administrative lawsuit fee is 30,000 HUF, and the subject matter is subject to fee exemption. Legal representation is mandatory in proceedings before the Metropolitan Court.

****REASONING****

I. Procedure

(1) The Applicant submitted a request to the Authority on December 29, 2021, to initiate a data protection authority procedure, stating that the Respondent – which deals with the delivery of postal, physical mail, and as part of this service sends notifications via email and phone to the addressees regarding the status of the package delivery – sends an unsolicited letter – regarding [...] – to the addressee of the delivery – specifically to the Applicant on November 22 and December 21, 2021 – which it has no right to do, as it believes that

- the addressee does not have a contractual relationship with it, since the service conditions are accepted by the sender of the delivery, and the addressee only requests or accepts the form of delivery; consequently, the Applicant believes that the addressee cannot give consent to receive direct marketing messages;
- since the Respondent has at least three opportunities to request consent from the addressee for receiving future direct marketing messages related to the delivery of a package (upon receipt of the package, upon arrival of the package at the depot, upon placement of the package in the Respondent's machines), the Applicant...

1 The form for initiating the administrative lawsuit is the NAIH_K01 form: NAIH_K01 form (2019.09.16.) The form can be filled out using the general form filling program (ÁNYK program). The form is available at the following link: <https://naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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According to its position, nothing justifies the sending of an independent direct marketing letter;

- The Applicant does not provide the option to unsubscribe from the direct marketing letter;
- The Applicant states at the end of the direct marketing email that "it has the right to send it, as it is permitted by law," while the legal provision it refers to explicitly prohibits the sending of such types of emails.

(2)

The Applicant further complained that the Applicant did not respond to the complaint submitted by him on November 22, 2021, at 12:13, to the [...] email address.

(3)

Following the review of the application, the Authority found that it did not clearly contain a specific request for a decision regarding the remedy of the indicated violation; therefore, in its order dated January 12, 2022, with case number NAIH-636-1/2022, it called on the Applicant to supplement the application. The Authority sent its order to the Applicant as an attachment to its accompanying letters dated January 12, 2022, with case numbers NAIH-636-2/2022 and NAIH-636-3/2022.

(4)

On January 12, 2022, the Applicant responded via email (NAIH-636-4/2022) to the Authority's order calling for supplementation, and then on January 17, 2022, also via email (NAIH-636-5/2022), requested information on whether he had provided all necessary data to the Authority.

(5)

In its order dated January 18, 2022, with case number NAIH-636-6/2022, the Authority called on the Applicant to submit his statements sent by email electronically (through the e-Papír service with a client gateway), or by postal mail as a non-obligated client for electronic administration, or in person at the Authority's customer service during its opening hours, considering that according to the provisions of Act CL of 2016 on general administrative procedure (hereinafter: Ákr.) and Act CCXXII of 2015 on the general rules of electronic administration and trust services (hereinafter: Eüsztv.), in order for the Applicant to make a legally effective statement, he must maintain contact with the Authority in writing, through the electronic means defined in the Eüsztv., or in person, as non-written electronic communication. The Authority sent its order to the Applicant as an attachment to its accompanying letters dated January 18, 2022, with case numbers NAIH-636-7/2022 and NAIH-636-8/2022.

(6)

In the application filed on January 19, 2022 (NAIH-636-9/2022), the Applicant complied with the Authority's request and asked the Authority for the following:

- Investigate why the Applicant did not investigate the Applicant's complaint;
- Investigate why the Applicant continued its allegedly unlawful practice one month after the submission of the complaint, which the Applicant had pointed out as a concerned party;
- Prohibit the Applicant from collecting personal data by referencing and informing about a non-existent legal provision – creating the appearance of obligation;
- Obligate the Applicant to delete the data that it allegedly unlawfully processed, as it does not have and cannot have a legal basis under the General Data Protection Regulation for processing such data;
- Call on the Applicant not to collect more personal data than necessary.

(7)

Subsequently, the Authority issued orders dated January 25, 2022, with case number NAIH-636-10/2022, dated March 11, 2022, with case number NAIH-636-12/2022, and dated June 8, 2022, with case number NAIH-636-14/2022.

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In its orders numbered 4, the Authority called upon the Applicant to provide a statement in order to clarify the facts.

(8)

The Applicant responded to the Authority's questions in letters registered on February 23, 2022 (NAIH-636-11/2022), April 12, 2022 (NAIH-636-13/2022), and June 29, 2022 (NAIH-636-15/2022).

(9)

Subsequently, based on the evidence available to it, the Authority informed the Applicant in its order dated July 4, 2022, with reference number NAIH-636-16/2022, that the evidentiary procedure in the data protection authority proceedings had been completed and drew attention to the fact that the evidence uncovered during the clarification of the facts could be accessed in accordance with the rules of document inspection, and that further evidentiary motions could be submitted. The Authority provided the same information to the Complainant in its order dated the same day, with reference number NAIH-636-17/2022.

(10) During the preparation of the decision, further clarification of questions became necessary; therefore, the Authority called upon the Applicant to provide a statement in its order dated April 19, 2023, with reference number NAIH-2900-1/2023. The Applicant responded in a letter registered on May 24, 2023 (NAIH-2900-2/2023).

(11) Following this, neither the Applicant nor the Complainant exercised their right to inspect documents, nor did they submit any further statements or additional evidentiary motions.

II. Clarification of the Facts

(12) The Applicant first informed the Authority that, as a result of the initiation of the procedure, it requested a review from a law firm with expertise in data protection law to ensure compliance with data

protection requirements, and in this context, it modified its data processing, data processing information, and made statements regarding the Authority's fact-finding orders, also acknowledging that during the examined period, from May 25, 2018, until November 22, 2021, or December 21, 2021, up to the date of sending emails addressed to the Complainant, its data processing was not adequate.

(13) Based on this, the Applicant stated as follows:

(14) The Applicant provides postal services based on Act CLIX of 2012 on Postal Services (hereinafter: Postal Act) and the General Terms and Conditions adopted by the National Media and Infocommunications Authority (hereinafter: GTC), which is a postal service that does not substitute for universal postal service as defined in Section 5(c) of the Postal Act.

(15) Section 8 of the Postal Act stipulates what types of services postal service providers may offer to their clients in the category of postal services that do not substitute for universal postal service. The Applicant provides a postal service that includes at least one of the special additional services representing significant added value as defined in Section 8(1)(d) and Section 8(3) of the Postal Act. Among the special additional services representing significant added value listed in Section 8(3) of the Act, the Applicant provides the service of "trackable handling of postal items" as mentioned in point (a) for its clients utilizing postal services. Section 2(26) of the Postal Act defines the trackable handling of postal items and specifies the requirements that the postal service provider (in this case, the Applicant) must meet in this regard. Accordingly, the Applicant provides information about the delivery of the postal item, its fact, via electronic message.

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informs the recipient (these are referred to as status messages, and the General Terms and Conditions applied by the Applicant use the term system message).

(16) In light of all this, Section 5(c), Section 8(1)(d), Section 8(3), and Section 2(26) of the Postal Act provide the legal basis for the requirement that the Applicant must inform the recipient of the postal item about the delivery of the postal item electronically.

(17) Considering these legal provisions, for example, in the case of an order from a web store to a parcel locker, the Applicant sends the following emails (status messages) to the affected parties:

a) The so-called pre-notification, in which the Applicant informs the affected party, namely the recipient, that a parcel number necessary for sending a package has been created in the Applicant's system based on the provided data, while the ordered package has not yet been handed over to the Applicant. Additionally, the "pre-notification" includes the details of the package (sender, parcel number, type of delivery, destination locker).

b) Notification of arrival at the warehouse, in which the Applicant informs the recipient that the web store has sent a package for them, which is already in the Applicant's warehouse. Furthermore, this email also contains the recipient's mobile phone number, as the Applicant will send the opening code via SMS to this number, allowing the recipient to pick up their package.

c) Notification of the package's arrival, in which the Applicant informs the recipient that their package is available for pickup at the selected parcel locker, and the email includes the pickup code and a QR code. Additionally, the email contains further important information related to delivery and cash on delivery.

d) The email regarding which the Applicant has also received and contested [...] has the primary purpose of providing feedback to the recipient about the successful delivery. This is expressed by the phrase "Thank you for choosing [...]". However, to make this purpose of the email even clearer, starting from January 27, 2022 (i.e., before the Authority's decision dated January 25, 2022, with case number NAIH-636-10/2022 was received on February 7, 2022), these electronic letters begin with the following text: "Dear XY! We inform you that the [...] transaction will be closed." [...] Additionally, the subject of the email has also been modified to: "The package shipment has been completed – [...]". However, regarding the subject of the email, there was also another modification after the receipt of the Authority's decision with case number NAIH-636-10/2022, as the Applicant suspended the sending of the emails that were the subject of the authority's procedure until the completion of this data protection authority procedure. In light of this, currently, the subject of the email is only "The package shipment

has been completed." The suspension also means that currently, the status message contains only the following text: "Dear XY! We inform you that the [...] transaction will be closed." [...] According to the Applicant's statement, however, until the aforementioned changes, there had been no changes in the data processing practice since the sending of the first such content emails – from the fourth quarter of 2021, including the day the letters were sent to the Applicant.

(18) From a data protection law perspective, according to the Applicant's statement, the legal basis for the data processing related to the sending of the email regarding [...] is Article 6(1)(b) of the General Data Protection Regulation, meaning that the data processing (the use of the email address for sending the status message) is "necessary for the performance of a contract to which the data subject is a party." Certain provisions of the General Terms and Conditions apply to the data subjects, i.e., the recipients, even if the contract under the General Terms and Conditions was fundamentally established between a web store (from which the data subject ordered a product) and the Applicant.

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for example, the provisions of the General Terms and Conditions (GTC) regarding the receipt of shipments and their return apply to the data subjects. The focus of the Requested service is, in fact, on the recipients: this is expressed in point 4 of the GTC, in which the Requested undertakes the delivery of shipments ordered by the recipient, the organization of the delivery, and the delivery of the package to the recipient. The sending of emails for tracking postal shipments is necessary for both the service provided by the Requested and the fulfillment of the contract between the web store and the recipient to be compliant with the contract, as well as for the Requested to meet its obligations towards the recipient as stipulated in the GTC.

(19) The original purpose of data processing for the emails regarding [...] received by the Applicant is, therefore, to notify the data subject about the delivery and its entire process, in accordance with the GTC and the Postal Act that underpins it, which allows the data subject to track their postal shipment and obtain information about the status of the delivery. According to the Requested, the legal basis for this data processing is Article 6(1)(b) of the General Data Protection Regulation (GDPR).

(20) The email regarding [...] that the Applicant objected to also included a request to fill out a questionnaire aimed at understanding customer satisfaction. The reason for this is that it is fundamentally important for the Requested to receive feedback on how satisfied its customers are with the service provided and which areas require improvement. For example, some of the questions aim to determine how satisfied the data subject is with the location of the parcel locker, the external condition of the parcel locker, and the payment process. This does not constitute separate data processing in the sense that the Requested does not use the email addresses for this other purpose of data processing, but rather the email containing the status message sent based on Article 6(1)(b) of the GDPR is supplemented with a new content message. The Requested only sends one email to the data subjects, and in this single email, there is information related to the original purpose of data processing (status message about the condition of the ordered product), as well as two other communications for different purposes (one is a request to fill out a questionnaire aimed at understanding customer satisfaction, while the other is information regarding the so-called [...]).

(21) According to the Requested, the EU legislator recognizes in Article 6(4) of the GDPR the possibility for the data controller to process personal data for purposes other than those for which the data was originally collected, provided that the new purpose of data processing is compatible with the original purpose based on the considerations listed in paragraph (4). According to recital (50) of the GDPR, in this case, there is no need for a separate legal basis different from the one that allowed for the collection of personal data.

(22) In the opinion of the Requested, based on the examination of the criteria set out in Article 6(4) of the GDPR conducted after the initiation of the current procedure, it can be established that the request to fill out the customer satisfaction questionnaire, as another purpose of sending the email, is compatible with the original purpose of data processing (sending a status message about the delivery process) for the following reasons:

a) The relationship between the data processing purposes [GDPR Article 6(4)(a)]: According to the Requested, there is a close relationship between the two purposes. The original purpose is for the Requested to continuously inform the data subject about the service utilized by the data subject, regarding the parcel shipment, while the other data processing purpose relates to how satisfied the data subject was with the service utilized (since it was the data subject who selected from the delivery options during the order or other transaction).

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The relationship between the objectives is further strengthened by the fact that this is a data processing process that takes place over a few days: typically, a few days elapse between sending the pre-notification and sending the email regarding [...].

b) The circumstances of the collection of personal data, particularly regarding the relationship between the data subjects and the data controller [General Data Protection Regulation Article 6(4)(b)]: The Applicant obtains the personal data of the data subjects, such as their name and email address, in connection with the use of their service. The data subjects decide whether they want the delivery of the package to be made to a parcel locker, which requires them to provide, among other things, their name and email address. In relation to the use of the service, the data subject and the Applicant are in a client relationship with each other, which is considered a relevant and appropriate relationship under the General Data Protection Regulation.

c) The nature of the personal data [General Data Protection Regulation Article 6(4)(c)]: The data processing is limited to two personal data points, the name of the data subject and their email address. The processing of the former data serves merely a courtesy purpose, meaning that the Applicant begins their electronic letter by directly addressing the person using the service. The purpose of processing the email address is to allow the Applicant to send a customer satisfaction survey to the data subject. By filling out the customer satisfaction survey, no personal data is transferred to the Applicant, and the completion of the survey is completely anonymous. This circumstance is also made entirely clear to the data subjects on the initial screen that appears when clicking the "Fill out the survey" button in the email, due to the following information: "The compilation of the survey and the confidential handling of the incoming data and preferences are carried out by our partner, a market research company [...], in accordance with the Data Protection Act, and [...], does not have access to the collected data." In the case of completing the survey, the Applicant only becomes aware of aggregated statistical data.

d) Assessment of the potential consequences for the data subjects regarding the planned further processing of the data [General Data Protection Regulation Article 6(4)(d)]: The Applicant only sends a request to the data subjects, but it is up to the free choice of the data subjects whether they wish to fill out the survey or not. If they do not fill out the survey, it will have no effect on them, and the Applicant will not receive any notification about this. If the data subjects provide a negative evaluation, it will also have no consequences, as neither the Applicant nor the contractual partner will see any data that would allow for the identification of the person filling it out. Furthermore, the Applicant sends the email regarding [...] to the data subjects only once. The Applicant also believes that such an email can be deleted by the data subjects from their inbox within a few seconds (or they can simply ignore it). Additionally, the Applicant took into account that it should not send a separate email regarding the request to fill out the customer satisfaction survey, as the initial assumption was that the data subjects might be more disturbed by receiving two emails (status message and the email regarding [...]) than if the two different purpose messages appeared within one email. Moreover, the email regarding [...] is only 20 kilobytes in size, meaning that it occupies very little space in the inbox, and thus does not affect the use of the email account by noticeably reducing the available storage for the data subjects. Based on these circumstances, the Applicant concluded that sending the email and communicating through the email has a minimal impact on the privacy of the data subjects.

e) Existence of appropriate safeguards (e.g., encryption, pseudonymization) [General Data Protection Regulation Article 6(4)(e)]: Given the context of this data processing, neither encryption nor pseudonymization can be imagined regarding the use of email addresses, as these methods would prevent the sending of the email regarding [...] to the data subject. According to the Applicant, sending a single email and requesting the completion of a survey within it, regarding which no personal data is

involved...

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no data is generated either for the Applicant or for its contractual partner, and it does not reasonably involve a level of violation of privacy that would necessitate the application of further guarantees.

(23) According to the Applicant's statement, no decision or other written determination has been made regarding this consideration, as neither the General Data Protection Regulation nor the Authority's known practice to date requires a business entity to make a management-related decision during such decision-making processes.

(24) The Applicant referred to the fact that data subjects may encounter the practice of being asked to fill out a customer satisfaction questionnaire via email from several other providers. Therefore, the overwhelming majority of data subjects are not unfamiliar with the data processing practice applied by the Applicant. Moreover, the email that the Applicant also received has been sent by the Applicant to the data subjects for several months, and the questionnaire has been completed by 90,000 individuals. During this period, no one has objected to the sending of the email containing the questionnaire. In the complaint dated November 22, 2021, the Applicant only objected to receiving an email that, in their opinion, contained advertising, thus their complaint did not relate to the request to fill out the questionnaire and did not affect this request at all. For the Applicant, these circumstances indicate that, in fact, data subjects are willing to express their opinions in a questionnaire survey and are not disturbed by receiving such inquiries. In light of this, the Applicant believes that, in general, sending the email regarding [...] does not negatively impact the privacy of the data subjects, nor does the request to fill out a questionnaire aimed at assessing customer satisfaction.

(25) Additionally, the email regarding [...] also contained information about [...]. This is not a specific marketing offer, but rather a permanent opportunity available to any data subject, which can be found in two places on the Applicant's website.

(26) The Applicant introduced the [...] as a discount in April 2019 for all its customers. The Applicant believed that the email received by the Applicant could be supplemented with information about [...]. The fact that this part of the email was intended merely as information is also indicated by the placement of the announcement regarding [...] at the bottom of the email, following the original purpose and the request to fill out the questionnaire aimed at assessing customer satisfaction. If the Applicant's intention had been to emphasize the section regarding the [...] discount, it would have placed the information about it earlier in the email.

(27) Similar to the request to fill out the customer satisfaction questionnaire, the information regarding [...] does not qualify as separate data processing in that the Applicant does not use the email addresses for this other purpose of data processing, but rather the email sent under Article 6(1)(b) of the General Data Protection Regulation is supplemented with a message of new content. The Applicant sends only one email to the data subjects, and in this one email, there is information related to the original data processing purpose, as well as two other communications for different purposes.

(28) According to the Applicant, based on the examination of the criteria under Article 6(4) of the General Data Protection Regulation, it can be established that the information regarding [...] as another purpose of sending the email is also compatible with the original data processing purpose (sending a status message about the delivery process) for the following reasons:

a) Connection between data processing purposes [Article 6(4)(a) of the General Data Protection Regulation]: according to the Applicant, there is a close relationship between the two purposes. The original purpose is to provide information about the service utilized by the data subject, the...

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The Applicant shall provide continuous information regarding the parcel delivery to the data subject, while the other data processing purpose is related to the fact that if the data subject was satisfied with the service, they have the opportunity to benefit from a permanent discount with the [...]. The connection between the purposes is further strengthened by the fact that this is a data processing process that takes place over a few days: typically, a few days elapse between sending the advance

notice and sending the email regarding [...] , meaning that if the data subject has had positive experiences, they have the opportunity to use the Applicant's service at a discounted rate the next time.

b) Circumstances of the collection of personal data, with particular regard to the relationship between the data subjects and the data controller [General Data Protection Regulation Article 6(4)(b)]: The Applicant obtains the personal data of the data subjects, such as their names and email addresses, in connection with the use of the service. The data subjects decide whether to request the delivery of the shipment to a [...] parcel locker, which service requires, among other things, the provision of their name and email address. In light of the use of the service, the data subject and the Applicant are in a client relationship with each other, which is considered a relevant and appropriate relationship under the General Data Protection Regulation.

c) Nature of the personal data [General Data Protection Regulation Article 6(4)(c)]: The data processing is limited to two personal data points, the name of the data subject and their email address. The processing of the former data serves merely a courtesy purpose, meaning that the Applicant begins their email by directly addressing the person using the service. The purpose of processing the email address is to allow the Applicant to send information regarding [...] to the data subject. The Applicant does not use any additional data collected previously (for the use of the service) for different purposes of data processing. Furthermore, the Applicant does not collect any feedback on whether the data subjects who received the email took advantage of the [...] opportunity or not.

d) Assessment of the potential consequences for the data subjects regarding the planned further processing of the data [General Data Protection Regulation Article 6(4)(d)]: The Applicant only sends one notification to the data subjects, but it is up to the free decision of the data subjects whether they wish to take advantage of the discount or not. If they do not take advantage of the discount, it will have no effect on the data subjects, and the Applicant will not receive any notification about this. The Applicant also sends the email regarding [...] to the data subjects only once. Such an email can be deleted by the data subjects from their inbox in a few seconds (or they can simply ignore it). Additionally, the Applicant has also considered not to send a separate notification regarding [...] , as it was assumed that the data subjects might be more disturbed by receiving two emails (status message and the email regarding [...]) than if the two different purpose messages appeared within one email. Furthermore, the email regarding [...] is only 20 kilobytes in size, thus the email takes up very little space in the inbox, meaning that receiving the email does not affect the use of the email account by occupying more space than a few megabytes and thus noticeably reducing the available storage for the data subjects. Based on these circumstances, the Applicant concluded that sending the email and communicating through the email has a minimal impact on the privacy of the data subjects. The Applicant further believes that the information regarding [...] is solely about an opportunity that provides benefits to the data subject. This was one of the reasons why this information was included in the letter a few months ago, as considering that the discount can only represent an advantage for the data subjects, the Applicant thought that it would not disturb their privacy as if they had sent them a message of a different nature that could be considered advertising.

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e) Existence of appropriate guarantees (e.g., encryption, pseudonymization) [General Data Protection Regulation Article 6(4) point e)]: Considering the context of this data processing, neither encryption nor pseudonymization can be envisaged regarding the use of email addresses, as these methods would prevent the sending of the email regarding [...] to the data subject. According to the Respondent's position, sending a single email and providing information about [...] does not reasonably entail a level of privacy infringement that would necessitate the application of further guarantees.

(29) According to the Respondent's statement, the sending of the email also serves another purpose different from the original purpose, in light of Article 6(4) of the General Data Protection Regulation. This other purpose is to inform the data subjects about the possibility of [...], which has been continuously available to any data subject for nearly three years. Considering the recital (50) of the General Data Protection Regulation, no new legal basis is required for this data processing; therefore, in accordance with this provision of the General Data Protection Regulation, the legal basis for the

data processing is Article 6(1)(b) of the General Data Protection Regulation.

(30) According to the Respondent's statement, it does not have a separate database containing the identities of those to whom it sends emails regarding [...]. This email can primarily be considered a status message, similar to other notifications sent in emails regarding the delivery process, and is sent out as an automated process, as a system message, just like other status messages.

(31) The email regarding [...] is information related to the provision of the service (delivery of postal items), and therefore it is a letter sent based on Article 6(1)(b) of the General Data Protection Regulation. In this case, the Respondent also includes messages with a different purpose that is compatible with the original purpose, based on Article 6(4) of the General Data Protection Regulation, and thus it included a request to fill out a questionnaire aimed at assessing customer satisfaction, as well as information regarding [...]. The email regarding [...], as well as the request to fill out the customer satisfaction questionnaire, cannot be considered independent data processing activities; thus, they cannot be regarded as a newsletter, marketing message, or a standalone email requesting the completion of a customer satisfaction questionnaire. Given that the Respondent has undertaken, in accordance with the previously cited provisions of the Postal Act and the General Terms and Conditions, to provide information to the data subjects about the status of delivery for the traceability of postal items, it is not possible to unsubscribe from the status message, as this is part of the service provision and contractual information.

(32) The Respondent sends the email regarding [...] to the sender and recipient in the case of parcel delivery between private individuals, as well as to the recipients in the case of business parcels, once for each package. Accordingly, between the fourth quarter of 2021 and February 2022, a total of 2,400,000 emails were sent. The Respondent notes, however, that this total number does not equate to how many data subjects, as defined in Article 4(1) of the General Data Protection Regulation, received this status message. Among the Respondent's clients, there are also legal entities that often provide the company's central email address during the service request (which, based on the Authority's practice, is not considered personal data), and the Respondent sent the status message to this email address. Consequently, in response to the Authority's request, the Respondent conducted a calculation, the result of which determined how many natural persons the Respondent could have sent status messages to on a monthly basis during the period from the fourth quarter of 2021 to February 2022.

(33) In the calculation, the Respondent took into account that if the senders and/or recipients of the package are legal entities, then in many cases the company's central e-

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the email address provided during the use of the service, which "business" email address does not qualify as personal data. On the other hand, there may be many email addresses in the system for which the Applicant would not be able to determine whether the user is using the service as a natural person, as a sole proprietor, or on behalf of a legal entity. The Applicant referred to the example that the email address kiss.virag@gmail.com may belong to a natural person named Kiss Virág, but it could also be used by Kiss Virág as a sole proprietor, or it might refer to a flower shop named "Kiss Virág," and thus the email address could be owned by a company operating the flower shop. This is relevant for the estimation, as according to the Authority's practice (for example: NAIH/2018/5233/4/V. number opinion or NAIH-740-8/2022. number decision), the data used by sole proprietors in their business activities can be freely used in compliance with the purpose limitation principle, and thus they are subject to different considerations than the handling of private individuals' email addresses, while "business" email addresses – according to the Authority's practice – are not considered personal data.

(34) The Applicant further stated that it should also be taken into account that, based on experience, the proportion of natural persons who sent a package two or more times during a quarterly period is considered high, and as a result, they could have received this status message two (or more) times. Concurrently, there is also a high number of users who received a package two or more times through the Applicant's service during a quarterly period, and thus they could have received this status message two (or more) times as well.

(35) According to the Applicant's position, based on the calculations performed considering the above aspects, it could have sent out 600,000 emails to its users over a one-month period during the four-month period. From this numerical data, those who should be deducted based on the above methodology are:

- those who received the status message at a "business" email address or a sole proprietor's email address,
- those who sent a package two or more times as a natural person,
- those who received a package two or more times as a natural person.

(36) Based on these calculations, considering the period between the fourth quarter of 2021 and February 2022, it can be projected that the Applicant could have sent this status message to between 35,000 and 210,000 natural persons over a one-month period.

(37) Regarding the notification of email sending, the Applicant stated that, on the one hand, the information related to the provision of the service (delivery of postal items) is mentioned in points 6.3.1, 6.3.2, and 9.2 of the General Terms and Conditions (GTC), – which was also included in the GTC effective on the days of sending emails addressed to the Applicant on November 22 and December 21, 2021 – according to which its clients receive notifications about the package status in an automatic system message. On the other hand, point 4.1 of the data processing information also states that the Applicant may use personal data for sending system messages related to the services and for sending a questionnaire regarding user satisfaction.

(38) The Applicant sent a copy of the data processing information effective on the days of sending emails addressed to the Applicant on November 22 and December 21, 2021, to the Authority, which it published on its website in September 2016. Point 4.1 of this document includes sending system messages related to the services as a purpose of data processing; however, according to the information, the consent of the data subject is the legal basis for data processing. This point of the information also includes sending a questionnaire regarding user satisfaction as a purpose of data processing, but not as related to the status message.

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reconciling data processing purpose. Information regarding [...] is, however, not found in the notification.

(39) According to the Applicant's statement, in light of the Authority's proceedings, they requested a review from a law firm with expertise in data protection law regarding data protection compliance. Based on this, the Applicant concluded that it was necessary to amend the data processing notification, which they will prepare without delay and submit to the Authority, as well as send to all affected parties via email and publish on their website.

(40) The Applicant – considering the statements recorded in the Authority's opinion NAIH/2018/1594/2/K., which states that "the GDPR does not explicitly impose an obligation on data controllers to create a data protection policy. According to Article 24(2) of the GDPR, the data controller must apply internal data protection rules only if this is proportionate in relation to the data processing activity" – believes that the [...] subject email alone does not necessitate the preparation of an internal data protection policy, and thus does not have such an internal regulation.

(41) According to the Applicant's database, the Applicant presumably availed themselves of the service around mid-November 2021 and likely received a package on the day the complaint was made, November 22, 2021. The Applicant assumes that the Applicant ordered a product from an online store, during which the Applicant selected the Applicant's service as the method of delivery, thereby providing the Applicant with the Applicant's personal data.

(42) According to the Applicant's statement, due to a configuration error in their IT system, they did not detect emails arriving at the [...] email address – to which an employee appointed as the Applicant's data protection officer originally had access – and thus did not notice the Applicant's specific inquiry.

(43) In this letter, the Applicant objected to the emails regarding [...], as they believe that the letter

contains unsolicited direct marketing content, and they did not consent to the sending of such a letter, and they assert that the Applicant does not even provide an option to unsubscribe. The Applicant also objected in their complaint that the letter referenced a legal provision that is contrary to the [...] subject letter. For all these reasons, the Applicant requested that the Applicant cease what they consider to be an unlawful letter-sending practice.

(44) Regarding the [...] email address, the Applicant noted that based on previous experiences, if customers had a complaint, request, or remark regarding the Applicant's service, they typically contacted the Applicant by phone or through a dedicated form (which can be accessed at the following link: [...]). The Applicant has not received any specific data protection-related requests or questions since the creation of the [...] email address, and their customers have not used it (except for the Applicant). Typically, this email address receives spam and other unsolicited advertisements, and only the Applicant has sent substantive correspondence to date.

(45) However, in light of the Authority's proceedings, the Applicant reviewed the process and procedures for managing this email address and account, as a result of which they have terminated the [...] email address and will instead receive inquiries related to their data processing through the customer service form and the Applicant's central email address, the [...] email address.

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(46) Furthermore, the Respondent replied to the Applicant's letter on February 25, 2022, and sent a copy of that reply to the Authority as proof that it had fulfilled its obligation to respond to the Applicant.

(47) According to the Respondent, the letter from the Applicant dated November 22, 2021, does not qualify as an exercise of rights under Articles 15-21 of the General Data Protection Regulation (GDPR) in that the data subject did not specify any rights that they wished to exercise against the Respondent.

(48) The Applicant did not request access to their personal data, nor did they request rectification, deletion, restriction, or submit a request for data portability. The Applicant's request can at most be considered an exercise of the right to object, but their letter overall indicates that they are actually complaining that, according to their assertion, the Respondent has not fulfilled its obligations as a data controller under Articles 5-6 of the GDPR. At the same time, the Applicant did not present any "reasons related to their own situation," as required by Article 21(1) of the GDPR and the Authority's practice as a condition for this exercise of rights by the data subject.

(49) In this context, the Respondent referred to the Authority's case decision NAIH-3476-1/2022, in which the Authority stated that "in the context of the objection, the Applicant raised complaints about the alleged legal violations by the Respondent, but did not refer to 'reasons related to their own situation.' The arguments raised in the context of the objection did not specify any particular factual circumstances in the Applicant's situation that would have allowed for further individualized balancing of interests by the Respondent compared to the general balancing of interests. These arguments actually pertain to the legality of data processing under Articles 5-6 of the GDPR, but do not reveal any particular and specific personal factors in the Applicant's situation that would have enabled the Respondent to conduct the individualized balancing of interests provided for in Article 21 of the GDPR." (...) "However, in the Authority's view, reasons related to the data subject's own situation cannot be identified and substituted with claims of potential violations of data controller obligations. Based on this, the data controller is not in a position to conduct an individualized 'rebalancing' after the specific, particular reasons closely related to the data subject's own life situation have been disclosed, which the data controller could then incorporate into aspects that may not have been evaluated during the general balancing of interests."

(50) According to the Respondent, in light of the Authority's decision, a complaint in which the data subject holds the data controller accountable for violations of data controller obligations cannot be considered a request for objection. Therefore, the Applicant's letter cannot be regarded as an exercise of the right to object under Article 21 of the GDPR.

(51) In the event that a violation is established, the Respondent requested that, in determining any potential data protection fine, it be taken into account that the Respondent requested a review from the

law firm mentioned in paragraph (12) of this decision to ensure data protection compliance. Accordingly, the Respondent modified its data processing information, which it also sent to the Authority. The new data processing information was uploaded by the Respondent to its website and was also forwarded to users via email. Additionally, the Respondent decided to prepare and implement an internal data protection policy to comply with the accountability requirement set forth in Article 5(2) of the GDPR at the highest possible level.

(52) In the event that the Authority finds it unacceptable that the status message regarding the feedback on the completion of delivery includes the provisions of Article 6(4) of the GDPR,

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In consideration of paragraph 14, information regarding [...] has also been included, and therefore the Authority intends to establish unlawful data processing. According to the Respondent's position, the following circumstances need to be taken into account regarding the application of legal consequences:

- a) The data processing involved the use of a single personal data, the email address (the use of the name served merely a courtesy purpose). Even if the Authority were to classify the data processing as unlawful, it would still be a case of extremely narrow scope data processing in terms of the range of processed data, and this data processing did not extend to any data that is considered more sensitive from the perspective of privacy.
- b) The data subjects did not incur any negative consequences from receiving information about [...] as part of the status message. If the Authority were to classify the data processing as unlawful, then according to the Respondent's position, it should be considered that the Data Protection Impact Assessment software filling guide ("Knowledge Base") available on the Authority's official website and downloadable from there categorizes "the receipt of unsolicited emails" among "negligible consequences." In other words, the Authority's position in this software's "Knowledge Base" is that if the only negative consequence of an unlawful data processing operation is that the data subjects receive unsolicited emails, then it can be regarded as a negligible risk. This also indicates that, according to the Authority's assessment, such a nature of violation poses no, or at most an extremely minor negative impact on the data subjects.
- c) Typically, the status message was sent to a data subject only once, as the data subjects received this email as the final step of the ordering process. If the Authority were to classify the data processing as unlawful, it is not the case that the emails were "harassing" in nature (for example, sent weekly).
- d) In this context, the Respondent emphasizes that it also reduces its liability that the data subjects can disregard this part of the status message, or even the status message itself, as it does not obligate them to anything, nor does it affect the service they have availed. The data subjects can delete this status message from their inbox within a few seconds.
- e) Furthermore, if the Authority were to classify the data processing as unlawful, the Respondent considers it important to highlight that there exists a relevant relationship between the Respondent and the data subjects (the data subjects are the Respondent's clients), and that the Respondent lawfully obtained the email addresses of the data subjects based on the legal relationship existing between them. The sending of the status message was closely related to the service availed by the data subject. Therefore, in the case of any potential unlawful data processing, the Respondent's liability is also reduced by the fact that it is not processing the email addresses of "foreign" data subjects or those who availed the Respondent's services years ago, but rather in the case of a service that was completed within a few days, the status message was received once as a message sent on the day of completion.

**** (53) **** In addition, the Authority has at its disposal an email sent on February 19, 2024, to the electronic address of an Authority employee, regarding [...], which invites the data subject to evaluate the service and fill out a questionnaire. At the bottom of the email, unlike the above, there is information stating that "[...], provides you with electronic tracking of your shipment based on legal obligation."

****III. Applicable Legal Provisions****

**** (54) **** According to Article 2(1) of the General Data Protection Regulation, the General Data Protection Regulation must be applied to personal data processed in a partially or fully automated manner.

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for the processing of personal data in a non-automated manner, which are part of a registration system or which are intended to become part of a registration system.

(55) According to Section 2 (2) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), the General Data Protection Regulation shall be applied with the supplements specified in the provisions indicated therein.

(56) According to Section 38 (2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly accessible data, and to facilitate the free flow of personal data within the European Union.

(57) Based on Section 38 (2a) of the Infotv., the tasks and powers assigned to the supervisory authority in the General Data Protection Regulation shall be exercised by the Authority in accordance with the provisions of the General Data Protection Regulation and this Act concerning entities under the jurisdiction of Hungary.

(58) According to point b) of Section 38 (3) of the Infotv., in the scope of its tasks under Section 38 (2) and (2a), the Authority shall conduct a data protection authority procedure at the request of the data subject and ex officio as specified in this Act.

(59) According to Section 60 (1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio.

(60) According to Section 103 (1) of the Act on General Administrative Procedure (Ákr.), in ex officio procedures, the provisions of this Act applicable to procedures initiated upon request shall be applied with the deviations contained in this chapter.

(61) In the absence of a different provision in the General Data Protection Regulation, the provisions of the Ákr. shall apply to data protection authority procedures initiated upon request with the deviations specified in the Infotv.

(62) According to Article 4 (1) of the General Data Protection Regulation: "personal data": any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

(63) According to Article 4 (2) of the General Data Protection Regulation: "processing": any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction."

(64) According to Article 4 (7) of the General Data Protection Regulation: "controller": the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for the designation of the controller may also be provided for by Union or Member State law."

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(65) According to Article 5(1)(a) and (b) of the General Data Protection Regulation: "Personal data must be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness,

fairness, and transparency');;

b) collected for specified, explicit, and legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes shall not be considered incompatible with the original purposes in accordance with Article 89(1) ('purpose limitation')."

(66) According to Article 6(1)(a) and (b) of the General Data Protection Regulation: "The processing of personal data shall be lawful only if and to the extent that at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract."

(67) According to Article 6(4) of the General Data Protection Regulation: "Where the processing of personal data for purposes other than those for which the data were collected is not based on the data subject's consent or on Union or Member State law that is necessary and proportionate to achieve a legitimate aim in a democratic society as referred to in Article 23(1), in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were originally collected, the controller shall take into account, among other things:

a) any links between the purposes of the collection of personal data and the purposes of the intended further processing;

b) the context in which the personal data have been collected, in particular regarding the relationship between the data subjects and the controller;

c) the nature of the personal data, in particular whether special categories of personal data as referred to in Article 9 are being processed, and whether data concerning criminal convictions and offenses as referred to in Article 10 are being processed;

d) the possible consequences of the intended further processing for data subjects;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

(68) According to Article 13 of the General Data Protection Regulation: "(1) Where personal data are collected from the data subject, the controller shall provide the data subject at the time of obtaining the personal data with the following information:

a) the identity and contact details of the controller and, where applicable, of the controller's representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the intended processing and the legal basis for the processing;

d) where the processing is based on point (f) of Article 6(1), the legitimate interests pursued by the controller or by a third party;

e) where applicable, the recipients of the personal data or categories of recipients;

f) where applicable, the fact that the controller intends to transfer personal data to a third country or international organization, and the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph of Article 49(1), the appropriate and suitable safeguards and the means by which to obtain a copy of them or the reference to where they are made available."

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(2) In addition to the information mentioned in paragraph (1), the data controller shall inform the data subject at the time of obtaining personal data, in order to ensure fair and transparent data processing, about the following supplementary information:

a) the duration of storage of personal data, or, if that is not possible, the criteria used to determine that duration;

b) the data subject's right to request access to their personal data from the data controller, to have it rectified, deleted, or to restrict its processing, and to object to such processing, as well as the right to data portability;

c) the right to withdraw consent at any time in the case of processing based on point (a) of Article 6(1)

- or point (a) of Article 9(2), which shall not affect the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
 - e) whether the provision of personal data is based on a legal obligation or a contractual requirement, or is a prerequisite for entering into a contract, and whether the data subject is obliged to provide the personal data, as well as the possible consequences of failing to provide such data;
 - f) the fact of automated decision-making as referred to in Articles 22(1) and (4), including profiling, as well as at least in those cases, information about the logic involved and the significance and the expected consequences of such processing for the data subject.
- (3) If the data controller intends to carry out further processing of personal data for a purpose other than that for which the data was collected, it must inform the data subject of that other purpose and of all relevant supplementary information mentioned in paragraph (2) prior to the further processing.
- (4) The provisions of paragraphs (1), (2), and (3) shall not apply if and to the extent that the data subject already has the information.
- (69) According to Article 58(2) of the General Data Protection Regulation: “In exercising its corrective powers, the supervisory authority:
- a) warns the data controller or processor that certain planned processing operations are likely to infringe the provisions of this Regulation;
 - b) reprimands the data controller or processor if their processing activities have infringed the provisions of this Regulation;
 - c) instructs the data controller or processor to comply with the data subject's request to exercise their rights under this Regulation;
 - d) instructs the data controller or processor to bring processing operations into compliance with the provisions of this Regulation, in a specified manner and within a specified time frame, where appropriate;
 - e) instructs the data controller to inform the data subject of a personal data breach;
 - f) imposes a temporary or definitive limitation on processing, including a ban on processing;
 - g) orders the rectification or deletion of personal data, or the restriction of processing, in accordance with Articles 16, 17, and 18, and orders the notification of those recipients to whom the personal data have been disclosed, in accordance with Article 17(2) and Article 19;
 - h) withdraws a certification or instructs the certification body to withdraw a certification issued in accordance with Articles 42 and 43, or instructs the certification body not to issue a certification if the conditions for certification are not or are no longer met;
 - i) imposes an administrative fine in accordance with Article 83, depending on the circumstances of each case, in addition to or instead of the measures mentioned in this paragraph; and
 - j) orders the suspension of data flows to a third country or an international organization.”
- (70) According to Article 83(2) and (5) of the General Data Protection Regulation: “[...]”
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- (2) Administrative fines shall be imposed depending on the circumstances of the specific case, alongside or instead of the measures mentioned in Article 58(2)(a)–(h) and (j). In determining whether an administrative fine is necessary, as well as in establishing the amount of the administrative fine, the following shall be duly considered in each case:
- a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question, as well as the number of data subjects affected by the infringement and the extent of the damage suffered by them;
 - b) the intentional or negligent nature of the infringement;
 - c) any measures taken by the data controller or the data processor to mitigate the damage suffered by the data subjects;
 - d) the degree of responsibility of the data controller or the data processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32;
 - e) any relevant previous infringements committed by the data controller or the data processor;
 - f) the extent of cooperation with the supervisory authority in remedying the infringement and mitigating

any potentially negative effects of the infringement;
g) the categories of personal data affected by the infringement;
h) how the supervisory authority became aware of the infringement, particularly whether the data controller or the data processor reported the infringement, and if so, with what level of detail;
i) if any of the measures mentioned in Article 58(2) had previously been imposed on the relevant data controller or data processor in relation to the same subject matter, compliance with those measures;
j) whether the data controller or the data processor adhered to approved codes of conduct under Article 40 or approved certification mechanisms under Article 42; and
k) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided as a direct or indirect consequence of the infringement.

[...]

(5) Violations of the following provisions shall be subject to an administrative fine of up to EUR 20,000,000, or in the case of enterprises, an amount not exceeding 4% of the total annual worldwide turnover of the previous financial year, with the higher amount being imposed:

a) the principles of data processing – including the conditions for consent – in accordance with Articles 5, 6, 7, and 9;
b) the rights of data subjects in accordance with Articles 12–22;
c) the transfer of personal data to a recipient in a third country or an international organization in accordance with Articles 44–49;
d) obligations under national law adopted pursuant to Chapter IX;
e) failure to comply with the instruction of the supervisory authority under Article 58(2), or failure to comply with a request for temporary or permanent restriction of processing or suspension of data flows, or failure to provide access in violation of Article 58(1).

[...]

(71) According to Section 71(2) of the Infotv.: "The Authority may use documents, data, or other evidence lawfully obtained during its proceedings in other proceedings."

(72) According to Section 2(26) of the Postal Act: "Trackable processing: the technology used by the postal service provider, through which the postal service provider provides information for each item sent in a text message transmitted and documented via the internet or using an electronic communications network, based on the unique identification mark of the postal item, at least regarding the location and date of collection of the item."

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date, the basis for the entitlement to receipt, or in the case of an unsuccessful delivery attempt, the further handling of the item."

(73) According to Section 5(c) of the Postal Act: "A postal service may be a postal service that does not replace universal postal service."

(74) According to Section 8(1)(d) of the Postal Act: "The following postal services, which represent added value compared to universal postal service or postal services that replace universal postal service, are considered postal services that do not replace universal postal service:

d) a postal service that includes at least one of the special additional services defined in paragraph (3), which represents significant added value."

(75) According to Section 8(3)(a) of the Postal Act: "The following are considered special additional services: the trackable handling of postal items."

(76) According to Section 3(d) of Act XLVIII of 2008 on the Basic Conditions and Certain Restrictions of Economic Advertising Activities (hereinafter: Grt.): "Economic advertising: any communication, information, or display method that promotes the sale or other utilization of a tangible movable property that can be acquired – including money, securities, and financial instruments, as well as natural resources that can be utilized in the manner of property – (hereinafter collectively referred to as: product), service, real estate, or property rights (hereinafter collectively referred to as: goods), or is aimed at promoting the name, designation, or activity of the business in connection with this purpose,

or increasing the recognition of goods or trademarks (hereinafter: advertisement).”

(77) According to Section 6(1) of the Grt.: “Unless otherwise provided by a separate law, advertisement may only be communicated to a natural person as the recipient of the advertisement through direct solicitation methods (hereinafter: direct business acquisition), particularly via electronic mail or other equivalent individual communication means – with the exception defined in paragraph (4) – if the recipient of the advertisement has previously consented clearly and explicitly.”

IV. Decision

(78) The Applicant provides a postal service that includes the collection, processing, transportation, and delivery of the requested parcel. This service is provided through the operation of the Applicant's parcel machines.

(79) The Applicant's core activity includes data processing, which is carried out extensively on a daily basis. According to the information available on its website, over the course of [...] years since the provision of its service, it has installed more than 1,000 parcel machines and delivered over 20 million parcels.

IV.1. Regarding the letters concerning [...] and the information about [...]

(80) Based on the definitions in the General Data Protection Regulation, the name and email address data processed in connection with the sending of the email concerning [...] are considered personal data, and any operation performed on personal data is classified as data processing.

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(81) In this case, the Applicant objected that on November 22 and December 21, 2021, the Respondent sent him an electronic letter regarding [...] which, in his opinion, contained direct marketing content, for which there was no legal basis, and the sending of the letter generally violates the General Data Protection Regulation.

(82) Considering the dates of the two letters received by the Applicant, the Authority examined the legality of the letters sent during this period from a data protection perspective. Changes following this period, such as the modifications referred to by the Respondent, which were implemented and planned from January 27, 2022, in the text and subject of the letters regarding [...], and the modification of the legal basis for data processing, can be taken into account during the legal consequences and the execution of the decision.

(83) Article 5 of the General Data Protection Regulation contains the main principles that must be considered during the processing of personal data and which must continuously apply throughout the data processing. According to the accountability requirement in Article 5(2) of the General Data Protection Regulation, the data controller is responsible for compliance with data protection principles and must be able to demonstrate this compliance. Accordingly, the data controller is obliged to document and record the data processing in such a way that its legality can be proven afterwards.

(84) Based on the principle of legality, fairness, and transparency in Article 5(1)(a) of the General Data Protection Regulation, the processing of personal data must be carried out lawfully and fairly, and in a transparent manner for the data subject.

(85) According to the principle of purpose limitation in Article 5(1)(b) of the General Data Protection Regulation, personal data may only be processed for specified, explicit, and legitimate purposes.

(86) An additional requirement for the legality of data processing is that the processing may only take place based on one of the legal bases referred to in Article 6(1) of the General Data Protection Regulation.

(87) Based on the statements presented by the Respondent to the Authority, the primary purpose of the email regarding [...] is for the Respondent to provide feedback to the recipient about successful delivery, as well as to inform about the processes of product delivery through status messages, which

is an obligation arising from the Postal Act. According to his statement, the legal basis for the related data processing is the contractual legal basis under Article 6(1)(b) of the General Data Protection Regulation. The further purpose of sending the email is to request the completion of a questionnaire aimed at assessing customer satisfaction, alongside the information regarding [...] which the Applicant objected to, claiming it to be marketing content. According to the Respondent, this is not a specific marketing offer, but rather a constant opportunity for any data subject, and similar to the request for completing the customer satisfaction questionnaire, the information regarding [...] does not constitute separate data processing. The reason for this, according to the Respondent, is that the Respondent does not use the email addresses for this other purpose of data processing, but rather sends an email containing status messages supplemented with a new content message based on Article 6(1)(b) of the General Data Protection Regulation.

(88) In this case of the email, according to the Respondent, the information regarding delivery and its process as the original purpose is compatible with the information regarding [...] as a message for another purpose, as well as the use of the email address, just as the request for completing the customer satisfaction questionnaire. Therefore, the information regarding [...] in the email is not considered separate data processing, and for example, it cannot be regarded as a newsletter or marketing message. Considering that the Respondent complies with the Postal Act, as well as the General Terms and Conditions,

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In consideration of its provisions, it undertook to provide information to the data subjects regarding the status of delivery for the purpose of tracking postal shipments; therefore, it is not possible to unsubscribe from the status message that also contains information about [...], as this is part of the service provision and the contractual obligation to inform.

The Applicant, after reviewing its data processing in light of the Authority's current proceedings, and during which it conducted an examination of the criteria set forth in Article 6(4) of the General Data Protection Regulation – the results of which were also made available to the Authority – determined that the information regarding [...] as another purpose of sending the email is compatible with the original purpose of data processing (sending a status message about the delivery process); therefore, in consideration of the preamble (50) of the General Data Protection Regulation, there is no need for a separate legal basis different from the legal basis under Article 6(1)(b) of the General Data Protection Regulation.

(89) However, contrary to these statements, the data processing information sent by the Applicant in emails addressed to the Applicant on November 22 and December 21, 2021, was prepared in 2016, which the Applicant published on its website in September 2016, and according to which the legal basis for data processing was the consent of the data subjects under the Infotv. in force at that time.

(90) The Authority cannot make determinations regarding the legal basis applied under the Infotv. prior to the start date of the General Data Protection Regulation, nor regarding the compliance of the 2016 data processing information with the General Data Protection Regulation in this data protection authority proceeding; however, it should be noted that the preamble (171) of the General Data Protection Regulation stipulates that data processing commenced before the application date of the General Data Protection Regulation – May 25, 2018 – must be brought into compliance with this regulation within two years from the date of entry into force of the General Data Protection Regulation – May 25, 2016.

(91) Based on this, the Applicant should have brought the data processing examined in this case into compliance with the rules of the General Data Protection Regulation, which, however, was not fully accomplished.

(92) Although the Applicant indicated the legal basis under Article 6(1)(b) of the General Data Protection Regulation as the basis for its data processing in its statement, no document supported the actual application of this legal basis. The data processing information that was in effect on the day the emails were sent to the Applicant on November 22 and December 21, 2021, and published on the

Applicant's website contained the legal basis of consent under the Infotv. in relation to the letters concerning [...], and the entirety of the information was based on the rules of the Infotv. Furthermore, the General Terms and Conditions (GTC) also referenced by the Applicant do not support the actual application of the legal basis under Article 6(1)(b) of the General Data Protection Regulation. GTC sections 6.3.1 and 6.3.2, moreover, refer to system messages received by the Applicant, thus they are not relevant to the present case, while GTC section 9.2 states that "the Sender or the Recipient will be notified of the arrival of the shipment and the possibility of receipt via an automatic system message sent to the mobile phone number, which notification will include the code necessary to open the compartment." From this provision, it does not follow that the Applicant processed the personal data of the Applicant – and other data subjects – on a legal basis consistent with its statement. Additionally, this provision of the GTC does not include the processing of email addresses. The fact that subsequently, as a result of the Authority's current proceedings, the Applicant modified its data processing information, which it also acknowledged as inadequate, aligning it with its statement and establishing the legal basis for data processing as Article 6(1)(b) of the General Data Protection Regulation, does not affect the legal assessment of the data processing examined for the preceding period.

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(93) Consequently, in the Authority's view, the Respondent decided to change the legal basis for data processing as a result of the procedure, in such a way that the consent under the Infotv. was modified to the legal basis under Article 6(1)(b) of the General Data Protection Regulation.

(94) According to the principle of legality, fair processing, and transparency as set out in Article 5(1)(a) of the General Data Protection Regulation, legality primarily presupposes the existence of an appropriate legal basis, meaning that the data processing must be based on the consent of the data subject or must have another legal basis as specified in the General Data Protection Regulation, including the necessity of compliance with legal obligations applicable to the data controller, the performance of a contract to which the data subject is a party, and steps prior to entering into a contract. The requirement of transparency is closely related to the expectation of legality, in that the process of data processing and its documentation must be accessible to the outside world.

Communication between the data controller and the data subject must be ensured, so that the data subject is informed of all essential aspects of the data processing and receives this information in a clear, simple manner, but with substantive content. Effective and comprehensive information is an essential element of transparency and a prerequisite for the enforcement of the data subject's rights. The General Data Protection Regulation prefers that information be provided in writing. The principle of transparency requires that information related to the processing of personal data be easily accessible and understandable, and that it be formulated in clear and simple language. This principle particularly applies to informing data subjects about the identity of the data controller and the purpose of the data processing. The principle of transparency is also part of and a prerequisite for the enforceability of accountability. Data controllers must inform data subjects and the public that the data will be processed lawfully and transparently, and they must be able to demonstrate that the data processing operations comply with the General Data Protection Regulation. In relation to online services, the characteristics of the data controller's systems must enable data subjects to actually find out what happens to their personal data.

(95) Accordingly, the Authority cannot examine the compliance of the legal basis of consent under the Infotv. and the 2016 data processing information in this procedure; however, it can be established that, contrary to the statements, point 4.1 of the 2016 data processing information indeed includes sending system messages related to the services as a purpose of data processing, but according to the information, the consent of the data subject was the legal basis for data processing during this period. This point of the information also includes sending a questionnaire regarding measuring user satisfaction as a purpose of data processing, but not as a purpose compatible with the status message. However, there is no information about [...] in the information. None of the data processing mentioned and described in the information has the legal basis of Article 6(1)(b) of the General Data Protection Regulation. Furthermore, at the bottom of the two emails sent to the Applicant, there is a

statement that the letter was sent by the Respondent based on Article 54(2)(a) of the Postal Act. Therefore, the legality of the legal basis for data processing cannot be established, nor can it be determined that the data processing complies with the General Data Protection Regulation.

(96) In light of the above and considering that the Respondent did not align its data processing with the General Data Protection Regulation during the examined period, it cannot be established that the data processing examined in this procedure was based on an appropriate legal basis; consequently, the Authority finds that the Respondent violated the principle of legality, fair processing, and transparency as set out in Article 5(1)(a) of the General Data Protection Regulation concerning the Applicant and other data subjects. However, because the Authority cannot examine the legality of consents obtained prior to the General Data Protection Regulation in this procedure and the legal basis applied by the Respondent is not clear, it cannot establish a clear lack of legal basis for data processing. Consequently, the Authority rejects the Applicant's request that the Authority instructs the...

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The Respondent – according to the Applicant's position – unlawfully took possession of the data for destruction.

(97) Consequently, it can be established that the Respondent did not provide information regarding data processing in accordance with the General Data Protection Regulation, which the Respondent confirmed by acknowledging that the modification of the data processing information is necessary.

(98) According to the right to prior information under Article 13 of the General Data Protection Regulation, data controllers are obliged to provide appropriate information to data subjects regarding the manner and circumstances of the processing of their personal data. This right is intended to make data subjects aware that the data controller intends to process personal data concerning them. On the other hand, through this information, data subjects can assess how the planned data processing may affect their privacy, as well as what other risks and dangers it may entail. Finally, individuals become capable of exercising their right to informational self-determination based on the information received. The right to prior information primarily aims to uphold the principle of transparency. Through this entitlement, data subjects can become acquainted with the planned data processing. However, it is also closely related to the requirement of fair procedure and the principle of accountability. Article 13 (1)-(2) of the General Data Protection Regulation contains the information that data controllers must provide to data subjects. Considering that during the examined period, the data processing information was based on the information requirements under the Infotv. in effect in 2016 – including information about the legal basis under the then Infotv. – it can be established that the Respondent did not provide information in accordance with the General Data Protection Regulation, thereby violating Article 13 (1)-(2) of the General Data Protection Regulation.

(99) According to the Authority's position, all the data processing purposes specified in the Respondent's statement – and partly in the 2016 data processing information – are deemed lawful, meaning it is lawful for the Respondent to use the data subject's name and email address to inform them about the status of the delivery of the ordered product, to request feedback in the form of a questionnaire regarding the quality of the service, and to inform the data subjects about the so-called [...] as a discount.

(100) The Authority also considers it acceptable for the Respondent to base the data processing related to status messages on the legal basis under Article 6 (1) b) of the General Data Protection Regulation among the contested data processing activities.

(101) The contractual legal basis is applicable because the terms and conditions applied by the Respondent also extend to the recipients, for example, regarding the receipt of shipments and their return. According to the Respondent's statement, the recipients are at the center of its service based on point 4 of the terms and conditions, which states that the Respondent undertakes the delivery of shipments ordered by the recipient, the organization of delivery, and the delivery of the package to the recipient. Sending emails for the traceability of postal shipments is necessary for both the proper provision of the service offered by the Respondent and for the fulfillment of the contract between the

online store and the recipient, as well as for the Respondent to meet its obligations towards the recipient as stipulated in the terms and conditions. According to the Authority's position, the data processing provides information related to the fulfillment of the main subject of the contract, concerning the receipt of the specific product or goods, which directly affects the performance of the specific contract, and the data subject can reasonably expect the data processing, and the terms and conditions explicitly include this, thus the contractual legal basis is applicable in this case of data processing.

(102) Regarding the request to fill out a questionnaire aimed at assessing customer satisfaction and the related data processing, it should be considered that the use of personal data – name, email address – for this different purpose – so-called further data processing – is in accordance with the General Data Protection Regulation.

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According to Article 5(1)(b) and Article 6(4) of the General Data Protection Regulation, data processing can only be lawful—except for processing for the purposes of public interest archiving, scientific and historical research, or statistical purposes—if it is not based on the consent of the data subject, but rather on legitimate public interest objectives as defined by Union or Member State law in accordance with Article 23(1) of the General Data Protection Regulation, and if it is otherwise compatible with the original purpose for which the personal data was collected.

(103) In this case, there is no need for a separate legal basis that differs from the one that allowed for the original collection of personal data. However, in this case, the data controller must analyze the relationship between the original purpose of data processing and the new purpose of data processing, considering the circumstances under which the personal data was collected (particularly the relationship between the data subject and the data controller), as well as which personal data is subject to processing (whether it involves special categories of data). Additionally, it must examine what potential consequences further data processing may have for the data subjects and must incorporate appropriate safeguards in relation to the new data processing.

(104) The Authority reviewed the aspects presented by the Applicant during the procedure in accordance with Article 6(4) of the General Data Protection Regulation, based on which it established that there is a close relationship between the original and the further purposes of data processing. The sending of status messages and the measurement of customer satisfaction as objectives are all related to the service, its fulfillment, and evaluation as a unified purchasing process. The Applicant collects only the name and email address of the data subjects who enter into a customer relationship with it for the purpose of delivery to the [...] parcel locker, providing them with information about the delivery process, and then invites the same group of individuals to evaluate its service—without processing any further personal data. In the Authority's view, this invitation for further data processing is closely related to the original purpose and does not adversely affect the privacy of the data subjects, considering that the request to complete a questionnaire aimed at understanding customer satisfaction can easily be disregarded in a letter placed alongside the notification of the successful delivery, and those who do not fill it out do not suffer any disadvantage, as the service has already been fulfilled. A mere invitation to complete a questionnaire evaluating a service and the processing of the data subject's name and email address for this purpose generally does not involve a high risk.

(105) Based on all of the above, the Authority accepts the Applicant's reasoning, considers the modifications made during the procedure regarding the contested data processing, and finds the processing of the names and email addresses of the data subjects for the purpose of inviting them to complete a questionnaire aimed at understanding customer satisfaction to be compatible with the original purpose of the Applicant's data processing, as well as the processing of the names and email addresses of the data subjects for the purpose of providing information related to the fulfillment of the service, thus no separate legal basis is required.

(106) The Authority also reviewed the currently applicable data processing information available on the Applicant's website in this context and found that its current point 6 addresses data processing related to the sending of status messages, while point 7 pertains to data processing related to the invitation to

complete a questionnaire aimed at understanding customer satisfaction, in accordance with the statements made by the Applicant. Therefore, no action is required in this regard.

(107) The Authority, however, has a February 19, 2024 email sent to an employee of the Authority regarding [...] which invites the data subject to evaluate the service and complete a questionnaire. At the bottom of the email, there is a notification stating that “[...], provides you with electronic tracking of your shipment based on a legal obligation.” However, this notification differs from the statement made by the Applicant and what is written in its data processing information, referring to the legal basis of a statutory obligation.

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The Respondent is not legally obligated to send an email inviting the completion of a questionnaire for the evaluation of the service; furthermore, this specific letter does not serve the purpose of electronic tracking of the shipment, which is why the information contained in the letter is incorrect. In this regard, it is necessary to amend the emails concerning [...] and the information provided in the electronic letters.

(108) Regarding the information about [...] – and the handling of the names and email addresses of the data subjects for this purpose – the Authority also reviewed the aspects examined by the Respondent in accordance with Article 6(4) of the General Data Protection Regulation. Based on this, the Authority's position is that considering that the data subject can send a package at a discounted rate through the Respondent's network, the information about [...] – contrary to the Respondent's position, which aims to promote the Respondent's service – is therefore classified as economic advertising according to Section 3(d) of the Grt. The Authority believes that this type of message is not directly related to the performance of the contract and the sending of related status messages, nor to the original purpose of data processing; rather, it is an independent, not closely related additional information with direct marketing content aimed at promoting the use of the Respondent's service, which the data subject can obtain not only in connection with the fulfillment of the given service but also through three other means: by registration, by inviting friends as a registered member, and also as a registered member during special promotions organized by the Respondent. Consequently, the information regarding delivery, which also serves the fulfillment of the contract, is separate from the purpose of processing the personal data related to [...], and as an independent direct marketing data processing, it cannot be reconciled with the data processing purpose related to the information on delivery. Furthermore, regarding the contractual legal basis, the provision of the service is the main subject of the contract, and the data subject reasonably expects that their data will be processed in connection with this, thus the contractual legal basis can only be applied to the use of the service, not for sending advertising messages.

(109) Considering that the information about [...] as direct marketing content cannot be reconciled with the original purpose of data processing, the Respondent must have an appropriate legal basis to send such messages.

(110) Although the Respondent claims that the data processing related to the information about [...] has a negligible impact on the data subject and is also beneficial for the data subject, the Authority's position is that the Respondent should not apply provisions for data processing that deviate from the purpose, but rather this data processing can be carried out based on a separate, independent data processing purpose with an appropriate legal basis.

(111) Furthermore, the data processing related to the information about [...] does not appear in the data processing information as a direct marketing letter, neither during the examined period nor currently; no information about it is visible or known to the data subjects. In this regard, it is necessary to amend the Respondent's data processing information.

(112) In light of all this, the Respondent cannot process the name and email address of the Applicant in connection with the information about [...] based on Article 6(1)(b) of the General Data Protection Regulation; therefore, the Authority prohibits the Respondent from processing the Applicant's personal data on this legal basis.

IV.2. The Complaint Submitted by the Applicant to the Respondent

(113) The Applicant also complained that the Respondent did not respond to the complaint submitted by the Applicant on November 22, 2021, at 12:13, to the email address [...].

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(114) The Applicant objected in this letter to the letters concerning [...], as in their opinion the letter contains unsolicited direct marketing content, and they did not consent to the sending of such a letter, and they believe that the Respondent does not even provide an option to unsubscribe. The Applicant also objected in their complaint that the letter contradicts the legal provision referenced in the letter concerning [...]. For all these reasons, the Applicant requested that the Respondent cease what they consider to be unlawful mailing practices.

(115) According to the Respondent's statement, due to a configuration error in their IT system, they did not detect the emails sent to the [...] email address, and thus did not notice the Applicant's specific inquiry either. However, the Respondent's position regarding the Applicant's letter dated November 22, 2021, is that it does not qualify as the exercise of rights under Articles 15-21 of the General Data Protection Regulation (GDPR) in that the data subject did not specify any rights they wished to exercise against the Respondent.

(116) According to the Respondent's statement, the Applicant did not request access to their personal data, did not request rectification, erasure, restriction, or did not submit a request for data portability. The Applicant's request can at most be considered an exercise of the right to object, but their letter overall indicates that they are actually complaining that, according to their claim, the Respondent has not fulfilled its obligations as a data controller under Articles 5-6 of the GDPR. At the same time, the Applicant did not present any "reasons related to their own situation," as required by Article 21(1) of the GDPR and the Authority's practice as a condition for this exercise of data subject rights.

(117) The Authority, reviewing the Applicant's letter, found that it, in agreement with the Respondent's statement, objected to the Respondent's general practice and is holding the Respondent accountable for failing to fulfill its data controller obligations without intending to assert any specific data subject rights under Articles 15-21 of the GDPR.

(118) For this reason, the Authority determines that the Respondent did not commit a violation regarding the exercise of the Applicant's data subject rights, thus the Authority rejects this part of the application.

(119) At the same time, the Authority draws the Respondent's attention to the fact that even if the application submitted by the Applicant was not a request aimed at exercising data subject rights under Articles 15-21 of the GDPR, the Respondent must establish a procedure so that a configuration error does not hinder the response to other data protection-related letters. Therefore, the Authority considers it appropriate that, as a result of this procedure, the Respondent has reviewed the process and procedure for managing the [...] email address and account, resulting in the termination of this email account, and in the future, will receive inquiries related to its data processing through the customer service form and the Respondent's central email address, the [...] email address.

(120) Furthermore, the Authority considers it appropriate that the Respondent responded to the Applicant's complaint on February 25, 2022, and sent a copy of that response to the Authority as well, to demonstrate that they have fulfilled their obligation to respond to the Applicant, which is not related to data subject rights.

V. Legal Consequences

(121) The Authority, based on Article 58(2)(b) of the General Data Protection Regulation, established that the Respondent violated Article 5(1)(a) of the General Data Protection Regulation by using the names and email addresses of the Applicant and other data subjects during the examined period in a manner that contradicts the principles of lawfulness, fairness, and transparency.

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Sending status messages in connection with levels and for the purpose of measuring customer satisfaction, as well as for the purpose of informing about [...].

(122) The Authority further established, based on Article 58(2)(b) of the General Data Protection Regulation, that the Applicant violated Article 13(1)-(2) of the General Data Protection Regulation, as it did not provide adequate information regarding its data processing to the Applicant and other affected parties.

(123) The Authority instructed the Applicant, based on Article 58(2)(d) of the General Data Protection Regulation, to establish a proper legal basis for its data processing related to [...] and to provide adequate information regarding its data processing to the affected parties. Furthermore, due to the lack of a legal basis, the Authority prohibited the Applicant from processing the names and email addresses of the Applicant and other affected parties in connection with the information regarding [...].

(124) The Authority examined whether it was justified to impose a data protection fine on the Applicant. In this regard, the Authority considered all circumstances of the case based on Article 83(2) of the General Data Protection Regulation and Section 75/A of the Infotv. and determined that a warning would neither be proportional nor have a deterrent effect in the case of the violations uncovered during this procedure; therefore, the imposition of a fine is necessary. The Authority specifically established the data protection fine concerning the Applicant – not regarding other affected parties.

(125) In determining the amount of the fine, the Authority primarily considered that the violations committed by the Applicant qualify as a violation falling into the higher fine category according to Article 83(5)(b) of the General Data Protection Regulation.

(126) In determining the amount of the data protection fine, the Authority took into account as aggravating circumstances that

- the use of personal data in violation of the principles of legality, fairness, and transparency, considering the data provided by the Applicant, affected between 35,000 and 210,000 natural persons when projected over a month for the period between the fourth quarter of 2021 and February 2022. If we only take the two boundary numbers into account, according to the Authority's own estimate, during the examined period, i.e., from the introduction of data processing in the fourth quarter of 2021 until January 27, 2022, it affected a total of between 175,000 and 1,050,000 natural persons, thus a large number of individuals [Article 83(2)(a) of the General Data Protection Regulation];
- this unlawful data processing by the Applicant is systemic, as based on the statements made by the Applicant and the evidence submitted by it, it did not only affect the Applicant as an isolated case but was a general data processing practice [Article 83(2)(a) of the General Data Protection Regulation];
- the data processing is part of the core activities of the Applicant, which it performs extensively on a daily basis. According to the information available on its website, over the past 8 years since the provision of its service, it has installed more than 1,000 parcel lockers and delivered more than 20 million packages. Consequently, it is expected that the Applicant, possessing adequate data protection knowledge, continues its data processing examined in this case in compliance with data protection requirements [Article 83(2)(a) and (k) of the General Data Protection Regulation].

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(127) The Authority considered the following mitigating circumstances when determining the amount of the data protection fine:

- no processing of special data occurred [General Data Protection Regulation Article 83(2)(a)];
- the violations committed by the Applicant resulted from negligence, the failure to review the application of the General Data Protection Regulation regarding data processing, and the incorrect qualification of data processing related to the information about [...] [General Data Protection Regulation Article 83(2)(b)];
- the Applicant has not yet been sanctioned for violating the General Data Protection Regulation, and no further complaints have been received regarding the sent million emails in connection with this data processing [General Data Protection Regulation Article 83(2)(e)];

- the Applicant reviewed its data processing under examination during the duration of the procedure [General Data Protection Regulation Article 83(2)(f)];
- the Applicant took measures as a result of the procedure to ensure lawful data processing, and modified the naming and content of the letters regarding [...] and also amended its data processing information [General Data Protection Regulation Article 83(2)(f)];
- the Authority significantly exceeded the administrative deadline [General Data Protection Regulation Article 83(2)(k)].

(128) The Authority did not consider the circumstances under General Data Protection Regulation Article 83(2)(c), (d), (g), (h), (i), and (j) relevant in determining the data protection fine imposed on the Applicant, as they cannot be interpreted in the context of the specific case.

(129) The net sales revenue of the Applicant in 2022 was approximately 4.2 billion forints, thus the imposed data protection fine is distant compared to the maximum fine that could be imposed.

VI. Other Issues:

(130) The Authority's jurisdiction is defined by Section 38(2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(131) The Authority's current decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication according to Section 82(1) of the Ákr. According to Section 112 of the Ákr., and Section 116(1) and (4)(d) of the Ákr., as well as Section 114(1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

* * *

(132) According to Section 135 of the Ákr., the obligated party must pay a late fee corresponding to the legal interest rate if it fails to fulfill its monetary obligation by the deadline.

(133) Based on Section 6:48(1) of Act V of 2013 on the Civil Code, in the case of a monetary debt, the obligated party must pay a late interest equal to the central bank base rate valid on the first day of the calendar half-year affected by the delay, starting from the date of default.

(134) The rules of administrative litigation are defined by Act I of 2017 on the Code of Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)(aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., legal representation is mandatory in a legal dispute where the court is exclusively competent. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the validity of the administrative act.

(135) Section 29(1) of the Kp. and, in this regard, Section 604 of Act CXXX of 2016 on the Civil Procedure Code is applicable, and according to Section 9(1)(b) of the Eüsztv., the client's legal representative is obliged to communicate electronically.

(136) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp.

(137) The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the procedure is exempt from the prior payment of the fee under Section 59(1) and Section 62(1)(h) of the Itv.

(138) If the Applicant does not properly prove the fulfillment of the prescribed obligations and monetary obligations, the Authority will consider that the Applicant has not fulfilled its obligations by the deadline. According to Section 132 of the Ákr., if the Applicant does not comply with the obligations set forth in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Section 82(1) of the Ákr. According to Section 133 of the Ákr., enforcement is ordered by the authority that made the decision, unless otherwise provided by law or

government decree. According to Section 134 of the Ákr., enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government ordinance in a local government authority matter. According to Section 61(7) of the Infotv., regarding the obligation to perform a specific act, to behave in a certain way, to tolerate, or to cease, the Authority will carry out the enforcement of the decision.

(139) The Authority exceeded the one hundred and fifty-day administrative deadline under Section 60/A(1) of the Infotv. during the procedure, therefore, based on Section 51(b) of the Ákr., it will pay ten thousand forints to the Applicant – at their choice – by bank transfer or postal order.

Budapest, April 29, 2024.

Dr. habil. Attila Péterfalvi

President

University Professor